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File No.: EXP202210203

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against A.A.A. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on September 11, 2023, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202210203

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: Mr. B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 5, 2022. The complaint is directed against Mr. A.A.A. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 6.1 of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that the respondent has a camera installed behind a window of his residence, which is oriented outward, capable of capturing public roads and a nearby beach adjacent to the residence where the camera is located, without any prior administrative authorization for this.

He provides images of the camera's location and the affected area.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 07/10/2022, as evidenced by the acknowledgment of receipt in the file.

On 20/10/2022, a response was received by this Agency in which the respondent indicated that he has a camera installed in his living room oriented towards the outside to see the Mediterranean Sea when he is not in this house, as he only uses it on vacation.

The respondent states that the camera does not record images, but only allows real-time viewing and that, although it captures a portion of the beach where people may occasionally be seen, the distance of the image prevents identification.

He provides an image of the camera's field of view, in which it is noted that it includes a disproportionate portion of public road that is also a sensitive environment like the beach.

The respondent also provides an analysis of the camera's characteristics, brand IMOU, model Cruiser 4MP, from which it is inferred that it offers potentialities that may be intrusive and far from purely "domestic": human detection, night vision, 360° lens, intelligent tracking, recording capability, and a 16X zoom.

From the above, it must be concluded that the data processing (images) carried out with the camera subject to this complaint falls within the scope of application of the GDPR, since it exceeds the purely domestic scope and the camera includes in its field of view a disproportionate portion of the public road (beach).

THIRD: On November 18, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by

the complainant was admitted for processing.

FOURTH: On February 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the respondent submitted a written statement in which, in summary, he stated that: "That as of the date of my first letter, October 18, 2022, the camera in question was definitively removed to await resolution in case of having violated data protection regulations. For all the above, I request that you consider this argument presented in this writing, and accept my word of good faith as evidence."

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SIXTH: Attached as an annex is a list of documents present in the procedure.

From the actions taken in the present procedure and the documentation in the file, the following have been established:

PROVEN FACTS

FIRST: The claimant states that the respondent has a camera installed behind a window of their residence, which faces outward, capable of capturing public thoroughfare and a nearby beach adjacent to the residence where the camera is located, without any prior administrative authorization for this. They provide images of the camera's location and the affected area.

SECOND: The respondent claims that on October 18, 2022, the camera in question was definitively removed to await the resolution in case of having violated data protection regulations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

Having examined the allegations of the respondent, it should be noted that, although they state that on October 18, 2022, they definitively removed the camera that was installed behind a window of their residence, facing outward, and capturing public thoroughfare and a nearby beach, on one hand, the date of the camera's removal is not substantiated, and on the other hand, this does not prevent the fact that the infringement had already been committed up to that moment.

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III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Infringement occurred

In this case, the complaint is examined regarding the installation of a camera behind a window, whose field of vision includes a public thoroughfare (part of a parking area and the beach), which is also a sensitive environment such as the beach. The camera offers potentialities that can be intrusive and far from purely "domestic."

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks."

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The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR.

"1. Personal data shall be:

- a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, for scientific and historical research purposes, or for statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy');
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the

purposes of the processing of personal data; personal data may be stored for longer periods insofar as they are processed solely for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the implementation of appropriate technical and organizational measures required by this Regulation to protect the rights and freedoms of the data subject ('storage limitation');

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality').

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('accountability')."

In the case examined, the respondent admits that it captures public space in order to view the beach and the sea using a camera installed in its holiday home, capturing images in real-time, without these being recorded.

It should be noted that the capturing of images is a processing of personal data in the terms of Article 4.2) of the GDPR, applying the GDPR regardless of whether the images are recorded or not.

Since the purpose of capturing the images by the respondent is not to preserve the safety of persons, property, and facilities, and therefore does not meet the legitimizing basis of public interest, there must be a legal basis that legitimizes the processing, and at this moment in the procedure, there is no legitimizing cause that allows it, especially considering that capturing images of the beach (a sensitive area) may affect the privacy of individuals who remain on the beach or who freely transit through the area.

V

Possible administrative infringement

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In accordance with the evidence available at this moment in the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the facts presented violate the provisions of Article 6.1. of the GDPR, which could constitute an infringement classified under Article 83.5.a) of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total global annual turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;."

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawfulness of processing established in Article 6 of Regulation (EU) 2016/679."

VI

Proposal for sanction

Article 58.2 of the GDPR states:

"Each supervisory authority shall have all of the following corrective powers:

(...)

d) order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringement of Article 6.1. of the GDPR, considering the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine.

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The fine imposed must be, in each individual case, effective, proportionate, and deterrent, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

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- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

The balance of the circumstances considered, regarding the infringements committed by violating the provisions of Article 6.1 of the GDPR, allows for an initial assessment of a fine of €300 (three hundred euros).

VII

Conclusion

In light of the above, the following
PROPOSAL FOR RESOLUTION

is issued: That the Director of the Spanish Agency for Data Protection sanctions Mr. A.A.A., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €300 (three hundred euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that he may, at any time prior to the resolution of this procedure, voluntarily pay the proposed fine, which will entail a reduction of 20% of its amount. With the application of this reduction, the fine would be set at €240 (two hundred forty euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the fine.

In the event that he chooses to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, he must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the fine amount. Additionally, he must send the proof of deposit to the General Subdirectorate of Inspection to proceed with closing the file.

By virtue of this, he is notified of the above, and it is made clear that he has a period of TEN DAYS to present any arguments he deems necessary in his defense and to submit any documents and information he considers pertinent, in accordance with Article 89.2 of the LPACAP.

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INSTRUCTOR
ANNEX

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05/09/2022 Complaint by B.B.B.

30/09/2022 Transfer of complaint to A.A.A.

20/10/2022 Response to request from A.A.A.

18/11/2022 Admission of complaint from B.B.B.

28/02/2023 Opening to A.A.A.

28/02/2023 Info. Claimant to B.B.B.

06/03/2023 Response to request from A.A.A.

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SECOND: On September 13, 2023, the respondent has proceeded to pay the fine in the amount of €240, making use of the reduction provided for in the previously transcribed proposal for resolution.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the proposal for resolution.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202210203, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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